



U.S. Department
of Transportation

Research and
Special Programs
Administration

MAR 23 1998

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11724
(SECOND REVISION)

EXPIRATION DATE: October 1, 1998

(FOR RENEWAL, SEE 49 CFR SECTION 107.109.)

1. GRANTEE: Sea-Land Service, Inc., Charlotte, NC.
(See Appendix A for additional grantees)
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of motor vehicles with fuel in its tank and its batteries connected when in closed freight container or when stowed in a hold or compartment on cargo vessels. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 176.905(c) and (k). The grantee is exempted from the requirement that the battery cables of a motor vehicle with fuel in its tank be disconnected and secured away from the battery terminals when in a closed freight container or when stowed in a hold or compartment on board a vessel.
5. BASIS. This exemption is based on Sea-Land Service, Inc.'s application dated June 4, 1996, submitted in accordance with 49 CFR 107.105 and the public process thereon and an additional letter dated November 5, 1996.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/ Division	Identification number	Packing Group
Vehicles, Self-Propelled/Engines, Internal Combustion	9	UN3166	N/A

No Renewal - NO+ Active

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7. PACKAGING AND/OR SAFETY CONTROL MEASURES:

a. Prior to loading into a freight container or into a hold or compartment for transport by cargo vessel, each vehicle powered by an internal combustion engine must be inspected by the person responsible for loading and, if necessary, repaired to ensure that:

1. there are no fuel leaks in any portion of the fuel system;
2. battery cables are securely connected to batteries and there are no other identifiable faults in the electrical system that could result in short circuit or other unintended electrical source of ignition.

b. A vehicle's ignition key may not be in the ignition while the vehicle is in a freight container or in a hold or compartment on board a cargo vessel.

c. A vehicle powered by an internal combustion engine which has a fuel tank containing compressed gas or liquefied gas of Class 2.1 may not be transported under the terms of this exemption.

8. SPECIAL PROVISIONS: Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo Vessel.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each cargo vessel used to transport the packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law 49 U.S.C. Section 5101 et seq:

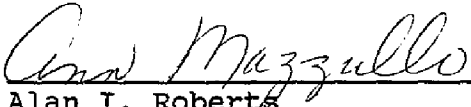
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.106 et seq., when applicable.

Each "hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAR 23 1998

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Dist: USCG